(3) By redesignating (a) and (b) of the proviso as (b) and (c), respectively.

(D) Section 225.382 is amended by changing the proviso at the end of the fifth sentence to read, "*Provided*, That brandy, gin, or vodka may be transferred to storage tanks in accordance with § 225.402."

(E) Section 225.400 (d) (4) is amended to read as follows: "(4) in any warehouse, if the spirits are brandy, gin, or vodka: *Provided*, That tanks for the storage of vodka must be metal, porcelain, glass, or paraffin-lined; and"

(F) The proviso at the end of the second sentence of § 225.402 is amended to read as follows: "*Provided*, That any brandy, gin, or vodka received in tank cars or tank trucks may be transferred to storage tanks."

(G) Section 225.408 is amended as follows:

(1) By inserting after the first sentence the following new sentence: "Brandy in warehouse storage tanks may be reduced in such storage tanks to not less than 100 degrees of proof prior to being drawn into packages."

(2) By amending the proviso at the end of the third sentence to read as follows: "*Provided*, That any brandy, gin, or vodka may be withdrawn from storage tanks into tank cars or tank trucks for transfer in bond."

(3) By amending the last sentence to read, "The proof of wine spirits intended for use in wine production may not be reduced."

(4) By amending the statutory citation to read:

(68A Stat. 634, 640; 26 U. S. C. 5194, 5215)

(H) The undesignated centerheading preceding § 225.583 is amended to read, "Addition of Burnt Sugar or Caramel, or Oak Chips".

(I) The headnote of § 225.584 is amended to read, "*Addition of burnt sugar or caramel after tax determination.*"

(J) By inserting a new section, reading as follows, immediately after § 225.584:

§ 225.584a *Addition of burnt sugar or caramel to brandy in storage tanks.* Caramel or burnt sugar may be added to brandy in storage tanks when the brandy is being reduced prior to being drawn into wooden packages. The burnt sugar or caramel shall not contain any substantial quantity of sugar which has not been caramelized, or possess any material sweetening properties. The caramel may be dissolved in a small quantity of hot water or in a small quantity of brandy removed from the tank for that purpose, before it is added to the bulk of the brandy in the tank. After the burnt sugar or caramel is added, the brandy in the tank will be thoroughly agitated and its proof determined. The proof so ascertained will be regarded as the proof of the brandy run into all packages filled from the tank. Packages containing brandy to which burnt sugar or caramel has been added, in addition to all other marks and brands required by this part, shall be marked with the letters, "B. S. A." A similar notation shall be made on Form 1520 covering the gauge of the brandy filled from the tank.

(68A Stat. 607; 26 U. S. C. 5025)

(Sec. 7805, 68A Stat. 917; 26 U. S. C. 7805)

This Treasury decision shall be effective on publication in the FEDERAL REGISTER.

Compliance with the public rule making and effective date requirements of section 4 (a) and (c) of the Administration Procedure Act (60 Stat. 238; 5 U. S. C. 1003) is impracticable and unnecessary in connection with the issuance of this Treasury decision because the amendments are of a liberalizing nature and impose no new restrictions on the industry.

[SEAL] O. GORDON DELK,
Acting Commissioner of Internal Revenue.

Approved: April 19, 1956.

DAN THROOP SMITH,
Special Assistant to the Secretary in Charge of Tax Policy.

[F. R. Doc. 56-3204; Filed, Apr. 24, 1956; 8:48 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1287]

[248761]

NEW MEXICO

REVOKING EXECUTIVE ORDER NO. 1560 OF JULY 10, 1912, WHICH RESERVED PUBLIC LANDS FOR USE OF THE FOREST SERVICE AS THE RICO SARCO ADMINISTRATIVE SITE

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 1560 of July 10, 1912, which temporarily withdrew the following-described lands in New Mexico for use of the Forest Service, Department of Agriculture, as the Rico Sarco Administrative Site, is hereby revoked:

NEW MEXICO PRINCIPAL MERIDIAN

Township 19 North, Range 10 East, N. M. P. M., sections 4 and 9. Beginning at the Southeast corner of the tract designated as R. 1, whence the quarter corner common to sections 10 and 11, T. 19 N., R. 10 E., N. M. P. M., bears the following courses and distances:

S. 63° E. 0.76 chains.
N. 36° E. 20.32 chains.
N. 61° 20' E. 2.15 chains.
S. 50° E. 1.10 chains.
S. 77° E. 20.00 chains.
S. 62° E. 30.52 chains.
S. 24° E. 2.39 chains.
N. 81° E. 15.00 chains.
S. 88° E. 5.00 chains.
S. 59° E. 4.67 chains.
S. 79° 30' E. 4.00 chains.
S. 54° E. 6.00 chains.
South 26.00 chains.
Thence N. 60° 30' W. 19 chains to R. 2;
Thence N. 12° W. 13 chains to R. 3;
Thence N. 12° E. 45.75 chains to R. 4;
Thence 86° 45' E. 14 chains to R. 5;
Thence S. 3° 30' W. 66.50 chains to R. 1, the place of beginning;
Magnetic variation 13° 30' East.

The area described contains 112.90 acres.

The land is located in Santa Fe County, New Mexico, west of the Santa Fe National Forest. The topography is rolling to mountainous and bisected by several large canyons. Soils are medium textured to rocky. Vegetation consists of Ponderosa pine, oak brush, and native grasses. The land is unsuitable for farming.

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any existing valid rights and the requirements of applicable law, the lands are hereby opened to filing of such applications, selections, and locations as are permitted on unsurveyed lands in accordance with the following:

a. Applications and selections which are permitted on unsurveyed lands under the nonmineral public-land laws and applications and offers under the mineral leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having preference rights conferred by existing laws or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on May 25, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications after that hour and before 10:00 a. m. on August 24, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on August 24, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and

selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on August 24, 1956.

Persons claiming veterans preference rights under paragraph (2) above must enclose with their application proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon statutory preference or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, New Mexico.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 19, 1956.

[F. R. Doc. 56-3193; Filed, Apr. 24, 1956; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdt. 3-12]

PART 3—RADIO BROADCAST SERVICES

MISCELLANEOUS AMENDMENTS

In the matter of amendment of Part 3 of the Commission's rules and regulations to effect certain editorial changes therein.

The Commission has under consideration the desirability of making certain editorial changes in Part 3 of its rules and regulations.

The amendments adopted herein are editorial in nature, and, therefore, prior publication of Notice of Proposed Rule Making under the provisions of section 4 of the Administrative Procedure Act is unnecessary, and the amendments may become effective immediately.

The amendments adopted herein are issued pursuant to authority contained in sections 4 (i), 5 (d) (1) and 303 (r) of the Communications Act of 1934, as amended, and section 0.341 (a) of the Commission's rules and regulations.

It is ordered, That effective April 19, 1956, Part 3 of the Commission's rules and regulations is revised as set forth below:

1. The title of § 3.40 (e) is changed to: (e) *Spare tubes.*

2. The quotation "Ergebrisse einer Theorie uber * * * Leitfahigkeit" appearing in § 3.184 (c) is changed to read: "Ergebnisse einer Theorie ueber die Fortpflanzung elektron magnetischer Wellen ueber eine Kugel endlicher Leitfahigheit."

3. The first sentence of § 3.188 (i) is changed to read: "(i) Figure M3 (See Note to § 3.183 (c)) and Figure R3 of § 3.190 indicates effective conductivity values in the United States, and are to be used for determining the extent of broadcast station coverage when adequate field intensity measurements over the path in question are not available."

4. The reference to § 3.318 in § 3.295 (j) is changed to: § 3.319.

5. The figure for 37 degrees 23 minutes in Table III of § 3.698 is changed to: 55.031.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interpret or apply sec. 303, 48 Stat. 1082, as amended; sec. 5, 66 Stat. 713; 47 U. S. C. 303, 155)

Adopted: April 19, 1956.

Released: April 19, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-3184; Filed, Apr. 24, 1956; 8:45 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[Service Order 910]

PART 95—CAR SERVICE

RAILROAD OPERATING REGULATIONS FOR MOVEMENT OF LOADED FREIGHT CARS

APRIL 13, 1956.

Notice is hereby given that in deference to a temporary restraining order issued by the United States District Court for the District of Oregon, Civil Action No. 8541, dated April 7, 1956, no action will be taken to enforce Service Order No. 910 (21 F. R. 1798) until further order of the Commission.

Notice will be given to the general public by depositing a copy of this notice in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission.

[SEAL] HAROLD D. MCCOY,
Secretary.

[F. R. Doc. 56-3078; Filed, Apr. 24, 1956; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR (1954) Part 1]

INCOME TAX; TAXABLE YEARS BEGINNING AFTER DECEMBER 31, 1953

ITEMS SPECIFICALLY INCLUDED IN GROSS INCOME; ALIMONY AND SEPARATE MAINTENANCE PAYMENTS

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury or his delegate. Prior to the final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Attention: T:P, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in section 7805 of the Internal Revenue Code of 1954 (68A Stat. 917; 26 U. S. C. 7805).

[SEAL] RUSSELL C. HARRINGTON,
Commissioner of Internal Revenue.

The following regulations are prescribed under section 71 of the Internal Revenue Code of 1954, relating to alimony and separate maintenance payments. Except as otherwise stated in the regulations, the rules are applicable to taxable years beginning after December 31, 1953, and ending after August 16, 1954.

ITEMS SPECIFICALLY INCLUDED IN GROSS INCOME

§ 1.71 *Statutory provisions; alimony and separate maintenance payments.*

SEC. 71. *Alimony and separate maintenance payments*—(a) *General rule*—(1) *Decree of divorce or separate maintenance.* If a wife is divorced or legally separated from her husband under a decree of divorce or of separate maintenance, the wife's gross income includes periodic payments (whether or not made at regular intervals) received after such decree in discharge of (or attributable to property transferred, in trust or otherwise, in discharge of) a legal obligation which, because of the marital or family relationship, is imposed on or incurred by the husband under the decree or under a written instrument incident to such divorce or separation.

(2) *Written separation agreement.* If a wife is separated from her husband and there is a written separation agreement executed after the date of the enactment of this title, the wife's gross income includes periodic payments (whether or not made at regular intervals) received after such agreement is executed which are made under such agreement and because of the marital or family relationship (or which are attributable to property transferred, in trust or otherwise, under such agreement and because of such relationship). This paragraph shall not apply if the husband and wife make a single return jointly.

(3) *Decree for support.* If a wife is separated from her husband, the wife's gross income includes periodic payments (whether or not made at regular intervals) received by her after the date of the enactment of this title from her husband under a decree entered after March 1, 1954, requiring the husband to make the payments for her support or maintenance. This paragraph shall not